

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #1	CCRB Case #: 202002512	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/01/2020 12:30 PM	Location of Incident: Inside § 87(2)(b)	Precinct: 41	18 Mo. SOL 10/1/2021	EO SOL 5/4/2022	
Date/Time CV Reported Thu, 04/02/2020 8:23 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 04/02/2020 8:23 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Andrew Bocchieri	00000	938079	NARCBBX
2. DT3 Dywayne Harris	1274	949660	NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Victor Voronkov	6197	942678	NARCBBX
2. DT3 Andrew Ulich	6911	933587	NARCBBX
3. DT3 Luis Angeles	168	932260	NARCBBX
4. LT Alberto Gonzalez	00000	941828	052 PCT
5. DT3 Jose Lizardo	02113	944739	NARCBBX
6. DT3 Elizabeth Smith	5753	951273	NARCBBX
7. DT3 Ferdi Memedovski	6508	942190	NARCBBX
8. DT3 George Colon	02793	921223	NARCBBX
9. POF Theresa Lustica	01534	956859	NARCBBX
10. DT3 Anthony Rumph	06686	913189	NARCBBX
11. DT3 Fred Dorch	02679	938388	NARCBBX
12. DT3 Josue Marcelin	5026	942120	NARCBBX
13. DT3 Jason Merchan	6462	947246	NARCBBX
14. DT3 Coty Green	01272	949057	D-E T/F
15. POM Rostislav Kipervaser	8619	950687	DBBX
16. DT3 Nelson Nin	5300	950955	NARCBBX
17. DT3 Donald Sehl	1527	951232	NARCBBX
18. DT3 Massiel Pages	01435	953211	NARCBBX
19. CPT Steven Dixon	00000	938379	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A.LT Andrew Bocchieri	Abuse: Lieutenant Andrew Bocchieri stopped § 87(2)(b)	§ 87(2)(b)
B.DT3 Dywayne Harris	Abuse: Detective Dywayne Harris searched § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
C.DT3 Dywayne Harris	Abuse: Detective Dywayne Harris strip-searched § 87(2)(b) § 87(4-b) § 87(2)(g)	
D.DT3 Dywayne Harris	Abuse: Detective Dywayne Harris failed to provide § 87(2)(b) § 87(4-b) § 87(2)(g) with a business card.	
§ 87(4-b) § 87(2)(g)	§ 87(4-b) § 87(2)(g)	
§ 87(4-b) § 87(2)(g)	§ 87(4-b) § 87(2)(g)	
§ 87(4-b) § 87(2)(g)	§ 87(4-b) § 87(2)(g)	

Case Summary

On April 2, 2020, § 87(2)(b) filed this complaint via the CCRB online complaint form on behalf of her 28-year-old son, § 87(2)(b).

On April 1, 2020, at approximately 12:30 P.M., Lt. Andrew Bocchieri and Det. Dywayne Harris, both assigned to Bronx Narcotics, were at § 87(2)(b) in the Bronx, assisting with the execution of a search warrant for apartments § 87(2)(b) and § 87(2)(b) as part of a narcotics investigation led by Det. Victor Voronkov of the same command. When § 87(2)(b) who lived at apartment § 87(2)(b) entered the building, Det. Harris, at the instruction of Lt. Bocchieri, stopped him (**Allegation A, Abuse of Authority: § 87(2)(g)**). Det. Harris then allegedly entered § 87(2)(b)'s pockets (**Allegation B, Abuse of Authority: § 87(2)(g)**) and pulled his pants partially down, exposing his underwear (**Allegation C, Abuse of Authority: § 87(2)(g)**). Det. Harris allegedly did not provide § 87(2)(b) a business card or his information (**Allegation D, Abuse of Authority: § 87(2)(g)**).

§ 87(4-b) § 87(2)(g)

The investigation did not obtain video footage of this incident. Neither Det. Harris nor any officers assigned to Bronx Narcotics were equipped with a body-worn camera at the time. § 87(2)(b) was not arrested or issued any summonses in relation to this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Andrew Bocchieri stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Detective Dywayne Harris searched § 87(2)(b)

Allegation (C) Abuse of Authority: Detective Dywayne Harris strip-searched § 87(2)(b)

It is undisputed that Det. Harris, Lt. Bocchieri, and Det. Voronkov, arrived at § 87(2)(b) at approximately 12:30 P.M. to execute a search warrant at apartments § 87(2)(b) and § 87(2)(b). The search warrant was in relation to a narcotics investigation for which Det. Voronkov was the lead investigator. Further undisputed is that § 87(2)(b) lived at the building, in apartment § 87(2)(b). Lastly, when § 87(2)(b) entered the building during the warrant execution, Det. Harris stopped him on the first floor.

§ 87(2)(b) testified that at approximately 12:30 P.M., he was returning home from the grocery store (**01-02 Board Review**). From outside, he saw Det. Harris and other officers coming down the staircase inside the building. § 87(2)(b) believed that they had just searched an apartment but did not know whose apartment. Det. Harris came outside and, without saying anything, handcuffed § 87(2)(b). Two other male officers assisted Det. Harris, but § 87(2)(b) did not recall what they looked like. § 87(2)(b) asked Det. Harris why he was being arrested and Det. Harris stated that he was not under arrest, but that his name had come up in a narcotics investigation. § 87(2)(b) was wearing a shirt, a jacket, and pants with long johns and boxers underneath. § 87(2)(b)'s pockets contained house keys, money, and a cell phone. Without patting him down or saying anything, Det. Harris entered § 87(2)(b)'s jacket pockets. He then pulled § 87(2)(b)'s pants halfway down, exposing his long johns and touching his skin underneath the waistband. This caused the long johns to come down and expose 10% of § 87(2)(b)'s boxers, including the entire waistline. Det. Harris did not find anything on § 87(2)(b). § 87(2)(b) removed his handcuffs, and told him to leave.

Det. Harris testified that on the incident date, he attended a pre-tactical meeting for the search warrant

execution, during which he saw a photograph of § 87(2)(b) **(03 Board Review)**. He was not familiar with the details of Det. Voronkov's case and did not recall how § 87(2)(b) was involved in the investigation or if he was mentioned in the warrant. He did not recall any instructions provided regarding what to do if he encountered § 87(2)(b). At the building, Det. Harris spent most of his time on the § 87(2)(b) floor but went downstairs several times. One of those times, § 87(2)(b) was entering the building as Det. Harris was leaving. § 87(2)(b) was doing nothing other than walking. Det. Harris stopped § 87(2)(b) a decision he made based on the information provided at the pre-tactical meeting. Beyond recalling seeing his photo, Det. Harris did not recall what information he knew about § 87(2)(b) at the time. He asked two other officers to help him with the stop but did not recall who these officers were or if they were familiar with § 87(2)(b). He did not explain to the officers why he stopped § 87(2)(b). To Det. Harris's knowledge, § 87(2)(b) did not commit any crimes that day, but may previously have committed narcotics crimes. He did not recall what § 87(2)(b) was wearing or if his clothing had any bulges. Det. Harris called Det. Voronkov multiple times to decide how to proceed. Det. Harris then asked the other two officers to wait with § 87(2)(b) while he went upstairs to speak with Det. Voronkov. He did not issue any other instructions to the officers and did not hear them say anything to § 87(2)(b). Upstairs, Det. Voronkov stated that Det. Harris could let § 87(2)(b) go because there was not enough evidence to arrest him. Det. Voronkov did not explain anything further. When Det. Harris got back downstairs, the officers and § 87(2)(b) were speaking in a normal tone. Det. Harris did not hear what they were saying. He told § 87(2)(b) he was free to go and explained that he had stopped him because he was part of an investigation. Det. Harris did not search or strip-search § 87(2)(b) and did not see any other officer do so.

Lt. Bocchieri testified that during the pre-tactical meeting, he informed the officers that § 87(2)(b) had an open warrant, was part of Det. Voronkov's investigation, was known to carry a firearm, and had a history of violence **(04 Board Review)**. He distributed copies of § 87(2)(b)'s photo attached to the open warrant. Lt. Bocchieri believed the warrant was related to something minor, possibly an outstanding fine. He did not recall anyone else mentioning § 87(2)(b) during the meeting. At the meeting, Lt. Bocchieri made clear that, due to his involvement with robberies and firearms, § 87(2)(b)'s posed a high threat level. Lt. Bocchieri implied that officers should keep § 87(2)(b) under observation if they saw him in the building and could stop him. He did not explicitly tell officers to stop § 87(2)(b). While Lt. Bocchieri was on the fifth floor executing the search warrant, Det. Harris informed him that he had stopped § 87(2)(b) in the lobby. Lt. Bocchieri then went downstairs where he saw § 87(2)(b) and Det. Harris. Lt. Bocchieri did not recall any other officers who were with § 87(2)(b). Given § 87(2)(b)'s history, Lt. Bocchieri was concerned that he could be armed. Once he saw § 87(2)(b) he knew he was not armed. Lt. Bocchieri was uncertain how he knew this. He did not notice any bulges on § 87(2)(b)'s person and did not see any officers pat § 87(2)(b) down or search him. He did not recall if any officer told him that they had pat down or searched § 87(2)(b). Lt. Bocchieri told § 87(2)(b) that he had an open warrant for failing to pay a fine and that he should pay the fine or the warrant would remain open. He then decided to let § 87(2)(b) go because the fine was small, and officers had been given more latitude not to arrest people due to the COVID-19 pandemic. § 87(2)(b) did not complain to Lt. Bocchieri about anything any officer had done.

Det. Voronkov stated that he did not recall the pre-tactical meeting discussion or who was present **(05 Board Review)**. Det. Voronkov came across § 87(2)(b) during his investigation but did not recall why or who provided the information. He did not recall anything about § 87(2)(b) besides his name. He did not recall if there were any I-cards or warrants out for § 87(2)(b). He did not recall if § 87(2)(b) was mentioned during the pre-tactical meeting or was listed in the warrant. During the warrant execution, Det. Voronkov remained on the § 87(2)(b) floor. He did not recall Det. Harris talking to him about § 87(2)(b) while he was executing the warrants or if he later became aware that any officer encountered § 87(2)(b) in the building that day. Det. Voronkov did not stop, search, or strip search § 87(2)(b) that day and did not recall if any other officer did so.

Lt. Alberto Gonzalez, Det. Andrew Ulich, and Det. George Colon, all also assigned to Bronx Narcotics, testified that they assisted with the search warrant execution but did not recall seeing or being made aware of any officer stopping a civilian on the ground floor **(06-08 Board Review)**. They were not familiar with § 87(2)(b) and did not stop, search, or strip search him, nor were they aware of any other officer having done so.

Bench warrant #§ 87(2)(b) issued by Bronx County Criminal Court for § 87(2)(b) on § 87(2)(b), related to charges of § 87(2)(b) **(09 Board Review)**. The warrant included a photograph of § 87(2)(b) and was closed on § 87(2)(b).

NYPD Patrol Guide Procedure 208-42 indicates that officers can arrest civilians solely upon the existence of a bench warrant **(10 Board Review)**.

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Abuse of Authority: Detective Dywayne Harris failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that Det. Harris did not provide him with a business card or offer his information **(01-02 Board Review)**.

Det. Harris testified that, before leaving, he told § 87(2)(b) his name, rank, and shield number **(03 Board Review)**. Det. Harris did not provide § 87(2)(b) with a business card because his business cards had not been updated since he was promoted from officer to detective in November 2018. He did not want to give § 87(2)(b) an old business card because he did not want § 87(2)(b) to feel like he had deceived him. As of the date of his interview, January 26, 2021, Det. Harris was still waiting for his updated business cards. Det. Harris did not see any other officer give § 87(2)(b) a business card or hear them provide their information.

Lt. Bocchieri testified that Det. Harris told § 87(2)(b) his business card had an error and that he did not want to give him the wrong information **(04 Board Review)**. Lt. Bocchieri knew there was a misprint on Det. Harris's business card but did not know what type of error it was. Det. Harris then offered § 87(2)(b) a pen and paper to copy down his information and gave him ample time to write it down. Lt. Bocchieri did not recall if § 87(2)(b) wrote down Det. Harris's information. Lt. Bocchieri stated that because Det. Harris had probable cause to stop § 87(2)(b) he was not required to offer his business card to § 87(2)(b).

According to New York City Administrative Code § 14-174, at the conclusion of law enforcement activities that do not result in an arrest or summons, including pedestrian stops, officers must offer a business card **(11 Board Review)**. If the officer does not have "an adequate number of pre-printed business cards on his or her person," they are to offer the individual a hand-written card and offer to verbally provide them with their name, rank, and command.

§ 87(2)(g)
[Redacted text block]

§ 87(4-b) § 87(2)(g)
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Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one additional CCRB complaint and has not been named as victim in any allegations **(16 Board Review)**.
 - § 87(2)(b)
- § 87(2)(b) has been party to three additional CCRB complaints and has been named as avictim in six additional allegations **(17 Board Review)**.
 - § 87(2)(b)
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- Lt. Bocchieri has been a member of service for 16 years and has been a subject in three additional cases and three additional allegations, none of which were substantiated. § 87(2)(b)
- Det. Harris has been a member of service for 11 years and has been a subject in four additional CCRB complaints and five additional allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On October 30, 2020, the Office of the New York City Comptroller confirmed that § 87(2)(b) did not file a notice of claim in relation to this incident **(18 Board Review)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator: Rachel Adler Investigator Rachel Adler 11/30/2021

Signature

Print Title & Name

Date

Squad Leader: Mgr. Joy Almeyda 11.30.21

Signature

Print Title & Name

Date

Reviewer: _____

Signature

Print Title & Name

Date

